



Risk Placement Services, Inc.

Knowledge. Relationships.
Trust. Confidence.

Risk Placement Services, Inc. - Buffalo
400 Essay Rd
Suite 100
Buffalo, NY 14221

RPS Contact:
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Underwriting Manager
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Email: Andy_Coric@rpsins.com

August 10, 2023

RPS Submission #: 5827907A

Proposal of Insurance - Renewal

APPLICANT: The We Art One Artist Collective Inc.
229 North Broadway
Yonkers, NY 10701

RENEWAL OF: NDO2560521A

COVERAGE: Errors & Omissions - NOC

SUBMITTED TO: Rob Bowen
Glenmara Group Corp
78 Brookside Ave, Suite 132b
Chester, NY 10918
(845) 610-5700
rob@insuranceleadership.com

RETAIL PRODUCER COMMISSION: 10%

You do not have authority to bind this coverage. You can easily order coverage by completing the fields below and either faxing or emailing this page to the number or address listed at top

REQUESTED EFFECTIVE DATE: _____

PREMIUM FINANCE COMPANY: _____

PERSON REQUESTING BINDER: _____

DATE REQUESTED: _____

TRIA REJECTED _____ **TRIA ACCEPTED** _____

I have included the following necessary documentation:

Completed signed application	Completed signed TRIA	Loss Runs	Other Bind documents
_____	_____	_____	_____
_____	_____	_____	_____

1. Quote Review - The coverages described in this quote may not conform to the terms you requested. You are responsible for outlining and explaining to your client the coverages offered, including other options, whether available through RPS or not. The coverage terms attached are not fully described, and no assumption should be made as to the adequacy of coverages offered, as compared to the exposures of your client.
2. Actual coverage forms are available on request.
3. You are not an agent of the insurer, and as such, cannot bind coverage nor make any commitments on behalf of the insurer, nor of us. This policy cannot be assigned to another without the written consent of the Insurer of the Agent.



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PROPOSAL OF INSURANCE - Renewal

Proposal Information

Insured Name: The We Art One Artist Collective Inc.
Policy Period: 10/10/2023 to 10/10/2024
Insurance Carrier: Mount Vernon Fire Insurance Company NAIC #: 26522
Admitted / Non-Admitted: Admitted
A. M. Best Rating: A++ XIII

Retroactive Date (if Claims Made coverage):

Physical Location

229 North Broadway,
Yonkers, NY 10701

Limits of Insurance

Coverage: Professional Liability

\$1,000,000	Each Claim
\$1,000,000	Annual Aggregate

Deductible

\$1,000	Each Claim
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Rating Information

Premium Summary

Premium \$768.00

<u>Coverage</u>	<u>Premium</u>	<u>Commission%</u>	<u>MEP % -If varies from policy MEP</u>
Professional Liability	\$768.00	10.00	

Minimum Earned Premium:

TRIA Status: NOT APPLICABLE

TRIA Premium: (optional)

(All applicable taxes and fees are Fully Earned at binding unless otherwise specified.)

Fees:

Tax State (or home state): NY

SURPLUS LINES TAXES:

TAXES WITHOUT TRIA

TAXES WITH TRIA

TOTAL CHARGES W/O TRIA \$768.00

TOTAL CHARGES WITH TRIA \$768.00

Coverage Notes

This quote is valid for 30 days or until the proposed inception, whichever is later.

After binding, flat cancellation is not permitted. Minimum earned premium provision applies.

Forms / Endorsements

Terms & Conditions

IN ORDER TO BIND COVERAGE, please provide the following additional information. Please note, coverage and premium terms are subject to change or withdrawal pending review and underwriting approval of this additional information:

Binder Issuance is Subject To:

SEE CARRIER QUOTE SECTION A AND B

Glenmara Group Carport Insurance Group

Enclosed you will find **an admitted** renewal Non Profit Directors & Officers Liability quote for The We Art One Artist Collective Inc. The Expiring policy number is NDO2560521A and the expiration date is 10/10/2023.

- Section I-** Details the premiums, taxes and fees associated with this account. In addition, it provides the Underwriting Notes and covers any of the additional underwriting information that might be needed prior to binding or within 21 days of the inception date.
- Section II-** Lists the required coverage forms, notices, endorsements and exclusions.
- Section III-** Provides the Direct Bill Payment Description.

In addition we have included some materials that will assist in the evaluation of this offer of coverage.

- Endorsement DO-314 Biometric Information Exclusion for your review.
- A Point of Sale piece that provides some claims scenarios this account may encounter and a coverage checklist that can be compared to the quotation of another carrier.

The carrier will send the insured an invoice based on the terms reflected in this quote.
Payment is due to the carrier by the expiration date in order to renew coverage.

Payment options available to you are:

1. Send the invoice remittance slip with payment to the lockbox address on their invoice
2. Pay online at www.usli.com/ezpay.
3. Pay by phone (automated system available 24/7) at 866-632-2003

The policyholder can register their policy at www.usli.com/ezpay. By registering their policy, the insured will have access to additional information as well as the option to set-up recurring payments. Recurring payments are a great way to minimize the possibility of the insureds policy being cancelled or not renewed because payment was not received.

Please advise your agent as soon as possible if changes are needed or optional coverages are desired.

We invite you to contact us to discuss the benefits of any coverages, the costs associated or simply to provide feedback! We welcome the opportunity to talk with you about this quote.

Thank you for the opportunity to renew this coverage with you!

Sincerely,
Andy Coric
RPS BUFFALO
(716) 332-9444

NDO023L2165

Quote is valid until 10/10/2023

Re: **The We Art One Artist Collective Inc**
Renewal of: NDO2560521A - Expiration Date: 10/10/2023

To: Glenmara Group Corp. Insurance Group

Attn:
Commission: _____%

From: Andy Coric
andy_coric@rpsins.com / (716) 332-9444

****DIRECT BILL RENEWAL****

The policyholder will be invoiced 45 days prior to expiration.

This renewal will be invoiced with 1 installment.

This quote is for informational purposes only - do not bill or collect payment.

Please advise as soon as possible if changes are needed or optional coverages are desired.

I. PREMIUM AND UNDERWRITING NOTES/REQUIREMENTS

NON PROFIT DIRECTORS & OFFICERS LIABILITY POLICY INFORMATION

Carrier:	Mount Vernon Fire Insurance Company
Status:	Admitted
A.M. Best Rating:	A++ (Superior) - XII

SHARED LIMIT OPTION (Parts A and B have Shared Limits of Liability)

LIMIT OPTIONS	PREMIUM
☐ \$1,000,000	\$768

ADDITIONAL QUOTE INFORMATION

Part A Retention: \$1,000 Each Claim

Part B Retention: \$1,000 Each Claim

Coverage Part B cannot be purchased on a monoline basis for this product.

The limit for Coverage Part B cannot exceed the limit for Part A.

Shared Limit option includes a 13% credit which is included in the premiums shown

Defense Costs are Outside the Limits of Liability

Data and Security+ Endorsement is included in the Directors and Officers premiums shown

\$100,000 FLSA sublimit for defense and indemnity is included in the Employment Practices Liability premiums shown.

Business Resource Center including Human Resources consulting services and online toolkit included in the premiums shown

Directors and Officers Coverage and Employment Practices Liability Coverage are provided on a Claims Made basis.

Please contact us with any questions regarding the terminology used or the coverages provided.

****Read the quote carefully, it may not match the coverages requested****

This account is subject to the following - Sections A, B and C:

Please note that we will not be able to bind coverage until we satisfy all Prior to Binding requirements.

A. Prior To Bind Requirements:

- No Prior to Bind Requirements

B. Items Required Within 21 days of the inception of coverage:

- No Items Required Within 21 Days

C. Underwriting Notes:

- No Underwriting Notes

II. DIRECT BILL QUOTE INFORMATION

Additional Quote Information

-If a notice of claim is received by the Insured or United States Liability Insurance Group between the date of this quote letter and the expiration date of the policy, United States Liability Insurance Group retains the right to require a complete renewal submission and re-underwrite the terms and conditions.

III. REQUIRED FORMS & ENDORSEMENTS

Directors and Officers Endorsements

DO-100 NY	(03/15) Coverage Part A. Non Profit Directors And Officers Liability	DO-290 NY	(03/13) Fair Labor Standards Act Sub-Limit Endorsement
DO-101 NY	(01/13) Employment Practices Liability	*DO-314	(03/21) Biometric Information Exclusion
DO-219 NY	(09/11) Personal Injury Exclusion	DO-NY DN	(06/12) New York Disclosure Notice
DO-280 NY	(09/11) Shared Aggregate Limit	Jacket NY MTV	(12/19) Policy Jacket - Mount Vernon
DO-283 NY	(01/14) Data & Security+ Endorsement	USL DOJ NY	(10/12) Non-Profit Professional Liability Policy Common Policy Conditions

For your convenience we have marked the endorsements that have changed for this coming term. Those marked with 1 asterisk (*) are new forms not previously included on this account.

IV. DIRECT BILL PAYMENT PLAN DESCRIPTIONS

One Year Payment Plan Descriptions:

SINGLE PAYMENT - The entire premium is invoiced with one installment and due by the inception date.

This Endorsement modifies insurance provided under the following:

NON PROFIT MANAGEMENT LIABILITY POLICY

BIOMETRIC INFORMATION EXCLUSION

This endorsement amends the following **Coverage Parts**, if purchased and attached to this **Policy**:

Directors and Officers Coverage Part (DO-100), Section III, DEFINITIONS; and
Employment Practices Liability Coverage Part (DO-101), Section II, DEFINITIONS; and
Fiduciary Liability Coverage Part (DO-102), Section II, DEFINITIONS

are amended by the addition of the following:

Biometric Identifier(s) means a retina or iris scan, fingerprint, voiceprint, deoxyribonucleic acid (DNA), scan of hand or face geometry, or any physical, physiological, biological or behavioral characteristic of an individual, or anything else that could be perceived as biologically unique to an individual.

Biometric Information means any **Confidential Employee Information**, or any other information, regardless of how it is captured, converted, stored, or shared, based on an individual's **Biometric Identifier(s)** used to identify an individual.

The Employment Practices Coverage Part (DO-101), Section II. DEFINITIONS, **Wrongful Employment Act**, is deleted in its entirety and replaced by the following:

Wrongful Employment Act means any actual or alleged:

1. violation of any federal, state or local laws (whether statutory or common) prohibiting discrimination in employment based on a person's race, color, religion, creed, genetic information, age, gender or gender identity, disability, marital status, national origin, pregnancy, HIV status, sexual orientation or preference, any protected military status, or any other status that is protected pursuant to any such laws;
2. **Harassment**;
3. **Retaliation**;
4. wrongful: termination, dismissal or discharge of employment, whether actual or constructive;

5. wrongful: demotion; denial of tenure; failure or refusal to hire or promote; denial of seniority; failure to employ; or wrongful or negligent employee reference;
6. wrongful employment-related: misrepresentation; defamation, humiliation, libel or slander; negligent evaluation; wrongful discipline; wrongful deprivation of career opportunity; negligent retention, supervision, hiring or training; emotional distress, mental anguish, invasion of privacy or false imprisonment; but only when alleged as part of a **Claim** for an act described in 1. through 5. above;
7. wrongful failure to adopt or enforce consistent employment-related corporate workplace policies and procedures arising from 1. through 6. above;
8. breach of any express or implied contract, including any contract arising out of any personnel manual, employee handbook, policy statement or other representation;

committed or allegedly committed by an **Organization** or by an **Individual Insured** while acting in his or her capacity as such by any means including the internet, social media, email, or telecommunications systems.

The Directors and Officers Coverage Part (DO-100), Section IV, EXCLUSIONS, A. and Employment Practices Liability Coverage Part (DO-101), Section III, EXCLUSIONS, Subsection B. and Fiduciary Liability Coverage Part (DO-102), Section III, EXCLUSIONS, Subsection B.;

are amended by the addition of the following;

Biometric Information

violation of any law that regulates or restricts the collection, maintenance, storage, use, safeguarding, handling, retention, disposal, notifications, disclosures or authorizations related to **Biometric Information**; or any actual or alleged unauthorized collection, maintenance, storage, use, safeguarding, handling, retention, disposal, notifications, disclosures or authorizations of **Biometric Information**, or any other improper use thereof.

All other terms and conditions of this **Policy** remain unchanged. This endorsement is part of your **Policy** and takes effect on the effective date of your **Policy** unless another effective date is shown.



Privacy Notice At Collection

We may need to collect certain personal information to provide you with our services and products. For information on how we store, use and protect personal information, please see our Privacy Policy accessible on our website, <https://www.usli.com/privacy-policy/>.



Directors and Officers and Employment Practices Liability for Nonprofit Organizations

As a director or officer of a non profit organization, are you immune from liability?

- ▶ Immunity does not prevent an organization from being sued
- ▶ Immunity typically applies to volunteers, not to paid employees or the organization itself
- ▶ Employment-related laws are the same for any type of organization
- ▶ Over 90 percent of the claims against nonprofit organizations are employment practices-related
- ▶ These employment practices claims may include wrongful termination, third party sexual harassment, and third party discrimination
- ▶ Nearly 85 percent of nonprofits have an annual budget that is less than the average cost to defend a claim closed by litigation

Why you should purchase the Nonprofit Directors and Officers and Employment Practices Liability policy:

COVERAGE FEATURES	USLI	COMPETITORS
Separate limits of liability for D&O and EPL claims (D&O Limit not eroded by employment claims)		
Defense outside the limit of liability on all claims		
Punitive damages, where insurable by law, included automatically in most states.		
Third-party sexual harassment and third-party discrimination coverage		
Lifetime occurrence reporting provision (Occurrence feature for former D&Os)		
Coverage for both monetary and non-monetary claims		
Coverage for outside directorship liability		
Risk management services - Free unlimited employment practices consultation via a toll free helpline supported by the ability to ask questions online in the new EPL Risk Management Toolkit from PeopleSystems. The toolkit also contains a helpful news center, how-to guide for writing an employment manual and sample HR policies and employment forms.		
Fair Labor standards Act (FLSA) \$100,000 sublimit for defense and settlement (available in most states)		
Flexible coverage options including shared limits for various coverage parts and defense inside the limits available for discounted pricing		



Nonprofit Management Liability Product

For nearly 25 years, USLI has provided nonprofits and those who serve them with critical protection against unforeseen and costly management liability claims. Nonprofits are often asked to do more with less, and we in turn strive to provide them with more coverage at an affordable cost. Applicants can depend on the following coverage features to protect them and their missions:

Directors and Officers Liability

- \$1 million additional Side A coverage included on all policies
- Full severability
- Employed lawyers, personal injury and publishers liability included
- Retention forgiveness included at no charge
- Lifetime Occurrence Reporting Provision
- Broad definition of claim
- 80/20 hammer
- Comprehensive subsidiary coverage
- Broad Insured vs. Insured carve backs
- Full prior acts included
- Defense outside the limit

Additional Advantages

- Direct Bill available
- Available for web quoting
- Financial stability of a carrier rated A++ by A.M. Best
- Policyholders have access to many free and discounted services through our Business Resource Center that will assist in growing and protecting their business

Employment Practices Liability

- Employment practices liability including express social media coverage
- Retaliation carve backs
- Separate limits of liability for directors and officers and employment practices liability claims
- Fair Labor Standards Act (FLSA) \$100,000 sublimit for defense costs and loss (available in most jurisdictions)
- Third-party harassment and third-party discrimination coverage

Product Advantages

- Data & Security+ endorsement – \$50,000 sublimit each for data breach, identity theft, workplace violence and kidnap expenses, plus free identity theft services for directors and officers
- Risk management services – Free human resource consultation helpline service with unlimited calls and no time limits, plus an online HR resource center

See reverse side for common eligible classes





Common Classes

- **Target Classes**
 - Foundations
 - United Way centers
- **Social/Human Services**
 - Assistance centers
 - Court- appointed special advocates
 - Food banks
 - Homeless shelters
- **Community**
 - Exhibitions (auto shows, fairs, festivals)
 - Historical societies/Preservation
 - Humane societies
 - Libraries/Museums
 - Performing arts organizations
- **Education**
 - Preschools/Kindergartens/Day cares
 - Montessori schools Boarding/Private high schools
 - Community/Junior colleges
 - Vocational training
- **Religious Organizations**
 - Churches
 - Temples
 - Synagogues
 - Ministry organizations
- **Government Related**
 - Convention centers
 - Community/Civic centers
 - Economic development corporations
 - Public broadcasting
 - Regional planning commissions
 - Visitors/Tourist bureaus
 - Zoos
- **Shared Property**
 - Cemeteries
 - Condo/Homeowners associations
 - Low-income housing
 - Property owners associations
 - Water associations
- **Membership Organizations**
 - Fraternal clubs
 - Service clubs
 - Country clubs – dining clubs (golf, swimming, tennis, yacht clubs)
- **Promotion of Business**
 - Chambers of commerce
 - Lending organizations
 - Private industry councils
 - Professional associations
 - Research organizations
 - Trade associations
- **Youth Organizations**
 - At-risk youth facilities
 - Big Brother/Sister
 - Boys and Girls Clubs
 - Scouting organizations
 - Youth sports associations
 - YMCAs/YWCAs
- **Health**
 - Mental health centers
 - Substance abuse centers
 - Counseling/Referral/Crisis services/ Developmentally disabled facilities
 - Health care providers/clinics
 - Assisted living/Retirement/Nursing homes/Hospice

Ease of Doing Business

- Minimum information to quote:
 - Name
 - State
 - Annual revenues
 - Description of operations
- Ability to quote:
 - Over the phone
 - Off of competitor applications
 - Online



Check Out Your New Employment Practices Liability Risk Management Toolkit from PeopleSystems

Free Employment Practices Liability (EPL) Helpline 1-888-811-4182 (8 a.m. to 7:30 p.m. Eastern Time)

If a human resource consulting firm offered you their time and expertise for free, would you lock their phone number and email address in a drawer and never call? Of course not! Do you have questions such as:

- ▶ What are the current federal and state employment laws I need to know?
- ▶ What are "wage and hour" regulations? What does "exempt" versus "non-exempt" mean?
- ▶ How should I handle terminating, suspending or warning an employee?
- ▶ What type of human resources policies should I have in place?
- ▶ How should I properly document performance issues and disciplinary actions in an employee's file?
- ▶ What are appropriate and inappropriate questions to ask during an employment interview?
- ▶ What guidelines should I use to investigate a complaint of discrimination or harassment?

PeopleSystems is just a free phone call or email away!

Online Human Resources Center www.peoplesystems.com/USLI

To access the USLI policyholder features, click on "Request for client login" and complete with your information. Please take a moment to become familiar with the new PeopleSystems Resource Center's information.

- ▶ **Helpline to email your human resource questions:** Now you can email your questions via this web portal.
- ▶ **Human resource news center and recent employment law changes:** The news center keeps you up-to-date with recent changes in state and federal employment laws and what they mean to you as well as pertinent articles on employment issues you need to know about.
- ▶ **Human resource manual and employment forms:** You will find "Best Practices" helpful for handling common human resource issues. Issues may include conducting employee evaluations and understanding employment laws such as FLSA, FMLA and COBRA.
- ▶ **Human resource recommendations:** You will also find sample human resource policies regarding discrimination, harassment, employment at-will and electronic communications.



RESOURCES TO HELP YOUR BUSINESS GROW!

As a policyholder through USLI or Devon Park Specialty, you have access to many free and discounted services through the Business Resource Center that will assist you in operating, growing and protecting your business. Consider the following services and associated cost savings when deciding where to place your insurance!

HUMAN RESOURCES



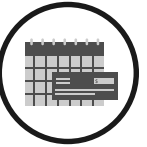
- » Free human resources consultation hotline to be used for personnel issues, including harassment and discrimination, the Family and Medical Leave Act, disability, wage and hours regulations and more
- » Online library with information, forms and articles pertaining to human resources
- » Resources for recruiting and training as well as termination and administration

PRE-EMPLOYMENT AND TENANT SCREENINGS



- » Discounted background checks, including multi-court criminal database searches, county criminal searches and more (first background check is free)
- » Best practices for performing a background check
- » Discounted tenant and drug screenings and motor vehicle reports (MVRs)

PAYROLL AND TAXES



- » Discounted payroll processing and tax services tailored for either a small or large business

CYBER RISK



- » Materials about securing personal and payment card information
- » Complimentary access to tools and resources that will help you understand your exposure to a data breach and the importance of a response plan

MARKETING

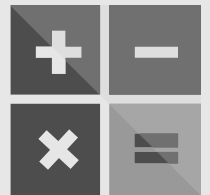


- » Suggested free and paid services, including email campaigns, photo editing, file management and more, for web marketing for your business
- » Suggested free and paid services for social media platforms, development, management and more
- » Discounted promotional items, giveaways and signage

SAFETY



- » Free on-site safety and occupational health consultation for your business
- » Free personal credit report
- » Disaster and emergency preparedness resources
- » Discounted alcohol and food server safety training for your staff and servers
- » Discounted CPR and first aid training
- » Youth resources for concussion training, waivers of liability, recognizing the signs and symptoms of child abuse, and more



Try our cost-savings calculator to see how much you could save!